

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JORDAN MCPHERSON,

Plaintiff,

-against-

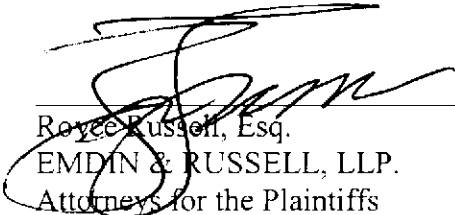
THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, Lt. JAVIER
VALENTINE OF THE 47TH PCT., TAX # 924576
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICERS, KELVIN OZUNA, SHIELD #023907,
ABRAHAM VILLAVIZAR, SHIELD # 8178, INDIVIDUALLY
AND AS A POLICE OFFICER, AND JANE DOE.
SUED HEREIN IN FICTICIOUS CAPACITY
AS THE IDENTITY IS PRESENTLY UNKNOWN,
EACH INDIVIDUALLY AND AS POLICE
OFFICERS,

Defendants,
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy
of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 26 2013


Royce Russell, Esq.

EMDIN & RUSSELL, LLP.

Attorneys for the Plaintiffs

286 Madison Avenue Suite 2002

New York, New York 10017

(212) 683-3995

JUN 27 2013
14:54

RECEIVED

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Valentine
c/o 47th pct.
4111 Laconia Ave.
Bronx, NY, 10466

KELVIN OZUNA
c/o 47th pct
4111 Laconia Avenue
Bronx, New York 10466

ABRAHAM VILLAVIZAR
c/o 47th Pct.
4111 Laconia Avenue
Bronx, New York 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JORDAN MCPHERSON

Plaintiff

-against-

VERIFIED COMPLAINT
INDEX NO.

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, LT. JAVIER
VALENTINE OF THE 47TH PCT, TAX # 924576
INDIVIDUALLY AND AS A POLICE OFFICER, AND
POLICE OFFICERS, KEVIN OZUNA, SHIELD #023907,
ABRAHAM VILLAVIZAR, SHIELD # 8178, INDIVIDUALLY
AND AS A POLICE OFFICER, AND JANE DOE,
SUED HEREIN IN FICTICIOUS CAPACITY
AS THE IDENTITY IS PRESENTLY UNKNOWN,
EACH INDIVIDUALLY AND AS POLICE
OFFICERS,

Defendants,
-----X

Plaintiff, Jordan McPherson, by his attorney EMDIN & RUSSELL, LLP, as and for a Verified
Complaint allege as follows:

PARTIES

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned the defendant, the City of New York, hereinafter certified to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, and the New York City Department of Corrections hereinafter respectively referred to as "NYPD" , including all the Police Officers therein.
3. Upon information and belief Lieutenant Javier Valentine, hereinafter referred to as "Valentine" at all times hereinafter mentioned, and on the 2nd day of May, 2012 was employed

as a Police Officer/Lieutenant by the "City" and/or "NYPD", was assigned to the 47th precinct, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

4. Upon information and belief Police Officer Kevin Ozuna, hereinafter referred to as "Ozuna" at all times hereinafter mentioned, and on the 2nd day of May, 2012 was employed as a Police Officer by the "City" and/or "NYPD", was assigned to the 47th precinct, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

5. Upon information and belief Police Officer Abraham Villavizar, hereinafter referred to as "Villavizar" at all times hereinafter mentioned, and on the 2nd day of May, 2012 was employed as a Police Officer by the "City" and/or "NYPD", was assigned to the 47th precinct, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

6. Upon information and belief Police Officer Jane Doe sued herein in fictitious capacity as the name and those of other officers present are currently unknown, hereinafter referred to as 'the Does' at all times hereinafter mentioned, and on the 2nd day of May, 2012 was/were employed as a Police Officer(s) by the "City" and/or "NYPD", and at all relevant times set forth below was assigned to the 47th pct. and acted in the capacity as Police Officers and employees of the City of New York, and/or New York City Police Department.

7. Hereinafter the above names police officers, "Valentine", and "the Does" are collectively referred to as "the Officers".

8. The incident set forth below occurred at the location of 3232 Bronxwood Avenue in the front of said location within the County of the Bronx and within the State of New York.

9. The location of 3232 Bronxwood Avenue in Bronx County, State of New York, will be

referred to as the "location" throughout this complaint.

10. At all relevant times hereinafter mentioned, Plaintiff Jordan McPherson will be referred as "McPherson" is a resident of Bronx County, residing at the "location".

11. McPherson has filed a Notice of Claim advising the Defendants of the nature of his claims and has submitted to a 50-H hearing.

12. The Defendants have not offered to settle the McPherson's claims.

13. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

14. On May 2, 2012 at approximately 9:45 p.m. "McPherson" and friends were moving furniture into his apartment at the "location" within the county of Bronx, New York.

15. At the above time at the "location" two police officers approached "McPherson" and his friends.

16. Said officers began to question McPherson requesting identification from all parties present.

17. McPherson who did not have his identification on his person asked the officers could he retrieve his identification from his apartment. The Defendants said, "No he could not leave".

18. Upon McPherson explaining to Defendant Valentine what was going on, Defendant Valentine, accused McPherson of smelling like marijuana and asked could he be searched.

19. Upon information and belief Officer Valentine asked McPherson could he search his person and searched McPherson.

20. McPherson consent to Police Officer Valentine's search of his person. Said stop and frisk revealed nothing illegal or any criminal contraband.

21. The Defendants then remarked that McPherson smelled like "weed" and began to

handcuff McPherson.

22. McPherson asked why he was being arrested, for which the Defendants forced his hands behind his back and threaten to mace McPherson by placing mace in his face, if McPherson did not comply with being handcuffed.

23. McPherson was then handcuffed tightly and placed over the hood of a police vehicle whereupon he was searched again.

24. Prior to the Defendants stopping and asking questions of McPherson the Defendants never identified themselves as Police Officers as they approached McPherson and friends in their plain clothes.

25. McPherson assumed the Defendants were Police Officers because of the way they parked their vehicle and approached him and his friends asking "What are you doing".

26. McPherson believes upon approaching him and his friends, the Defendants radio for assistance because just prior to him being handcuffed, additional officers arrived at the location.

27. Defendant Valentine twisted McPherson wrist in effort of handcuffing him, and stated he was a Sgt/Lt. and began to curse at McPherson as McPherson cursed back.

28. McPherson was then approached by a female officer in uniform and asked McPherson was he talking to the Sgt/Lt. whereupon it was then she stated he was going to be arrested.

29. McPherson while handcuffed was walked to the hood of a police car whereupon he was searched again while placed over the hood of said vehicle.

30. McPherson heard a loud noise and tried to look to his left were the noise came from in which he was then prevented from looking left and was lifted from the hood of the car and thrown down onto the concrete ground whereupon the Defendants were yelled stop resisting although McPherson was not resisting..

31. McPherson never resisted arrest at anytime nonetheless he was slammed onto a police

vehicle whereupon his face hit the mirror of the police vehicle and he was thrown to the concrete while Defendants were on the back of his legs while he was being punched as the Defendants yelled "he is resisting."

32. McPherson states the more he screamed the more he was punched.

33. As a result of the Defendants' conduct McPherson suffered scratches to his face, bruises to his face and body and a sprained thumb.

34. McPherson was eventually arraigned before a Criminal Court Judge for which he was released on his own recognizance pursuant to docket number 2012BX026081.

35. McPherson was ordered by the Court to appear on or about June 28, 2012, for which he appeared and the case was dismissed.

36. McPherson did not commit any crime on the above referenced date.

37. McPherson's detention, arrest, imprisonment search seizure and the physical contact were all without just cause, provocation and said actions were excessive, offensive, unprivileged and without his consent.

38. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 by reason of one or more of the exemptions provided in CPLR 1602.

AND AS FOR A FIRST CAUSE OF ACTION ON BEHALF OF MCPHERSON
AGAINST ALL DEFENDANTS FOR FALSE ARREST WITH A CHAUSE OF ACTION

ALLEGES:

39. McPherson repeats, reiterates, and reallege each and every allegation contained in paragraphs "1" through "38" with the same force and effect as if more fully and at length set forth herein.

40. That on the 2nd day of May 2012, at approximately 9:45 p.m. the Defendants and their agents, servants, and/or employees intentionally handcuffed, arrested and imprisoned McPherson

without any just cause or grounds therefore.

41. McPherson was handcuffed detained, processed, fingerprinted and photographed based upon false charges.

42. McPherson was held against his will under full force of arms until he was arraigned before a Criminal Court Judge and released upon his own recognizance as he was informed by way of a Misdemeanor accusatory instrument that he was being charged with Resisting Arrest.

43. McPherson was wholly innocent of any way or manner to his arrest by the Defendants, their agents, servants, and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

44. That the Defendants, their agents, servants and/or employees as set for the above, intended to seize, handcuffed and arrest McPherson and he was conscious of his arrest and confinement; McPherson did not consent to his arrest and confinement; and the arrest and confinement was not otherwise privileged.

45. That by reason of the aforesaid false arrest and false charges filed against McPherson, he was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said McPherson has been otherwise damaged.

46. That by reason of the aforesaid, McPherson has been damaged in sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CASE OF ACTION ON BEHALF OF MCPHERSON

AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT ALLEGES:

47. McPherson repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "46" with the same force as if more fully and at the length set forth herein.

46. That on May 2, 2012 at approximately 9:45 p.m. and thereafter, the Defendants and their

agents, servants, and/or employees intentionally handcuffed, and/or imprisoned McPherson without any just cause or grounds thereafter.

47. McPherson was held against his will under full force of arms until he was arraigned on a Misdemeanor accusatory instrument and released upon his own recognizance.

48. McPherson was detained for twenty-four hours prior to seeing a Judge.

49. McPherson was handcuffed for no less than twenty-four hours and was not free to leave because he was in police custody although he committed no crime.

50. McPherson was imprisoned from the moment he was handcuffed at the location, to the hospital, and precinct, where he was detained in a holding cell.

51. Defendants bases for said imprisonment were false and baseless and they were aware of such but nonetheless criminally processed McPherson by imprisoning him until his case could be heard before a Criminal Court Judge.

52. The imprisonment was cause by the Defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that McPherson was guilty of any crimes, as/or that the Defendants had just cause to imprison McPherson referenced above.

53. McPherson was wholly innocent of any crime and did not contribute in any way or manner to his imprisonment by the Defendants, their agents, servants, and/or employees and each was forced to submit to the aforesaid imprisonment entirely against his will.

54. That the Defendants, their agents, servants, and/or employees, as set forth above, intended to confine McPherson for which he was conscious of his confinement; McPherson did not consent to the confinement; and the confinement was not otherwise privileged.

55. That by reason of the aforesaid, McPherson has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A THRID CASE OF ACTION ON BEHALF OF MCPHERSON AGAINST

ALL NAMED DEFENDANTS FOR ASSAULT AND BATTERY ALLEGES:

56. McPherson repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" though "55" with the same force and effect as if fully set forth herein.

57. The Defendants on the 2nd day of May 2012 at approximately 9:45 p.m. and thereafter battered and assaulted McPherson in that the Defendants handcuffed McPherson, slammed his body and face against a police vehicle causing bruising to his face and body, and repeatedly punched him about the face and body and such physical conduct was unwarranted.

58. The Defendant on the above date, time and location punched McPherson in the face repeatedly and stepped on his legs, all while handcuffed and in the scope of their employment.

59. As a result of the Defendants' conduct, McPherson required medical treatment for which his legs were x-rayed. McPherson was informed his thumb was sprained upon receiving medical treatment at the hospital.

60. McPherson was battered in that any and all contact was not privileged, unwarranted, unwanted, offensive and without permission or consent of the McPherson.

61. The Defendant offensive battery contact consist of but is not limited to handcuffing McPherson as well as all conduct enumerated above in describing his assault.

62. The Defendants had absolutely no reason or just cause to batter or assault McPherson.

63. The assault and battery was physical contact and not privileged.

64. The battery and assault took place while McPherson had committed no crimes.

65. The Defendant officers conduct was at the least negligent and upon information and belief intentional, or reckless or without regard to McPherson's physical well being but all performed while acting in the scope of their employment as Police Officers and as agents for the Defendants the "City" and "NYPD" without just cause or provocation.

66. That the Defendants, their agents, servants and/or employees including unknown police officers, and the arresting officers, acting as agents on behalf of the Defendant "City" and/or "NYPD", within the scope of their employment, intentionally, willfully, and maliciously battered and assaulted McPherson in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to McPherson.

67. That said acts caused apprehension of such offensive contact to each of McPherson, and the Defendants caused such battery and assault McPherson about his body and limbs.

68. That by reason of the aforesaid intentional assault McPherson suffered physical and/or psychological injuries to his body and mind, and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering and emotional trauma, and that each was otherwise damaged.

69. That by reason of the aforesaid, the Plaintiff, McPherson has been damaged in sum exceeding the jurisdictional limits of the lower court.

AS AND FOR THE FOURTH CAUSE OF ACTION ON BAHALF OF THE PLAINTIFF,

MCPHERSON FOR MALICIOUS PROSECUTION AGAINST ALL NAMED

DEFENDANTS, ALLEGES:

70. McPherson reiterates, realleges, each and every allegation contained in paragraphs "1" through "69" with the same force and effect as if more fully and at length set forth herein.

71. The Defendants falsely charged McPherson with Resisting Arrest and Obstructing Governmental Administration, knowing at all times that McPherson never resisted arrest and said Defendants acted with intentional disregard for the truth.

72. The Defendants nonetheless falsified evidence by way of facts for which McPherson could be prosecuted via a Misdemeanor Accusatory instrument.

73. McPherson faced the real threat of a one year term of incarceration if convicted of these false charges.

74. Upon information and belief, the Defendants committed perjury by signing documents attesting to false facts which led to the prosecution of McPherson.

75. McPherson's criminal case was dismissed upon his court appearance on June 28, 2012.

76. McPherson was and is innocent of all criminal charges filed against him.

77. That by reason of the aforesaid, McPherson suffered additional pain and/or physical and/or emotional trauma and has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS FOR THE FIFTH CAUSE OF ACTION AGAINST THE CITY AND/OR NYPD

UNDER 42 U.S.C. 1983 MONELL CLAIM MCPHERSON ALLEGES:

78. McPherson repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "77" with the same force and effect as if more fully and at length set forth herein.

79. At all times material to this complaint, the Defendant the City of New York, acting through New York City Police Department, had in effect de facto policies, practices, and/or customs that were a direct and proximate cause of the unconstitutional conduct of the Defendant officers set forth in this complaint.

80. At all times material to this case "the City" and/or "NYPD" were charged with the responsibility of testing, analyzing, screening, hiring, assigning, training, supervising, monitoring, disciplining, investigating and/or retraining the officers employed by them, including the Defendant officers herein.

81. "The City" and/or "NYPD" de facto policies, practices and customs include, inter alia:

the failure to properly screen, test, and train police officers; the retention of unfit officers; failing to retrain unfit officers; improperly assigning officers; failing to properly supervise and/or monitor unfit officers; permitting, condoning and/or acting with deliberate indifference to the need to or/for additional training; testing; supervision, monitoring, and enforcement of guidelines, as well as acting with deliberate indifference to the need to discipline officers who violate guidelines, the need to establish independent oversight of officers; permitting a conspiracy of silence; and failing to properly investigate allegations of : false arrests, excessive use of force; racial targeting minorities, bias towards minorities or racial profiling minorities; illegal search and seizure; implementing the Defendants' stop and frisk policy in a discriminatory manner which results in lawsuits against the Defendants; illegal conduct including but not limited to improper use of police equipment, denial of prompt and necessary medical attention; signing false complaints and testify falsely; not enforcing patrol guidelines; condoning a code of silence; failing to discipline officers who are present and do not report police misconduct and by retaining officers alleged to have committed said conduct as well as officers present when said conduct was committed, yet failed to intervene or report said misconduct and witness intimidation among other acts of civil rights violations.

82. The City's and/or NYPD's conduct leads to a systemic practice and policy within the NYPD wherein officers seem fairly tolerant, both outwardly and inwardly of racial profiling police brutality, silence in the face of said brutality and/or illegal arrests/searches and seizures. A systemic practice where officers who report said misconduct are not viewed as "good cops", but rather as outcasts and snitches and are isolated, ostracized and often transferred.

83. The "City" and/or "NYPD" are responsible for creating a custom, police or practice wherein many officers do not seem to believe that anything is really wrong with illegal search and seizures, illegal entries into citizens homes, falsifying evidence, unnecessary use of force,

using derogatory language, use of excessive force delivered to minorities such as "McPherson" herein, and falsely and maliciously prosecuting innocent civilians.

84. The Defendants the City of new York and New York City Police Department had or should have had, knowledge of the vicious and violent, and/or criminal tendencies of its employees, or racial profiling committed by its employees, of the patterns of false arrests and ensuing cover-ups, of illegal search and seizures, of excessive and unlawful use of force; of illegal use of police equipment; of illegal entry into citizens homes, threats and intimidation, denial of prompt and necessary medical attention, dishonesty of its officers, and such act or actions were committed by police officers against the citizen of New York City, including the "McPherson" herein, by members of NYPD, including all of the named police officer defendants.

85. The Defendants the City of New York, and/or New York City Police Department, knew or should have known of the unlawful actions of all of the named police officer Defendants through actual and constructive notice of their unlawful activities, including, but not limited to those allegations as set forth herein above.

86. The Defendants City of New York, and/or NYPD failed to exercise responsible care by retaining and not terminating the employment of all said named police officer Defendants or taking other appropriate corrective action. The occurrence complained herein is due to the gross negligence and/or recklessness, and/or the policies and customs of the defendants, the City of New York, and/or NYPD.

87. Upon information and belief, the Defendants the City of New York and/or New York City Police Department have failed to effectively screen, hire, train, supervise, and discipline their police officers, including all of the named Defendant police officers, for their propensity for misconduct, including lack of truthfulness, and for their failure to protect citizens from

unconstitutional conduct of other police officers, thereby permitting and allowing the named police officer Defendants herein to be in a position to unjustifiably manufacture evidence, seize, search, arrest, restrain, threaten battery and assault McPherson, injure the McPherson and to otherwise cause him injury and violate his Federal and State Constitutional Rights.

88 Upon information and belief, one or all of the named police officer Defendants have been the subject or prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the City of New York that all of the named police officer defendants were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by McPherson herein.

89. Upon information and belief, the Defendant the City of New York and the New York City Police Department, maintained an inadequate structure for risk containment and stress management relative to its police officer, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient at the time selection of police officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual police officers; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; in promoting and retraining unfit police officers in supervisory capacities, and its ability to otherwise put the command structure on notice that an individual or individuals were at significant levels or risk to the public at large or to specific segments thereof. The effect of this was to permit police officers to function at levels of significant and substantial risk to the public.

90. As a result of the foregoing conscious policies, practices, customs and/or usages, the Defendants the City of New York and New York City Police Department, have permitted and allowed the employment and retention of individuals as police officers, including but not limited to the named defendant officers herein as well as other officers present with them, whose

individual circumstances place the public or segments thereof at substantial risk of being victims of violent and fraudulent behavior. Such policies, practices, customs, and/or usages are a direct and proximate cause of the conduct alleged herein and are otherwise a direct and proximate cause of the injuries to McPherson herein.

91. As a direct and proximate result of the City of New York's, NYPD's wrongful policies, practices, customs and/or usages complained of herein, McPherson individually suffered false arrest and imprisonment, malicious prosecution, deprivation of freedom, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

92. That aforementioned acts violated McPherson's Constitutional Rights as set forth in the Constitutions of the United States and of the State of New York and pursuant to 42. U.S.C Section 1983 and/or 1986.

93. The Defendants have been on notice actually and constructively given the numerous lawsuits filed against or involving police officers from the 47th precinct for which said precinct practices the abovementioned policy and procedures in their discriminatory use of the Defendants' stop and frisk policy and in racial profiling.

a. On or about March 14, 2007 involving the misconduct of the 47th precinct and its officers concerning the false arrest of Deborah Meeks whereupon a lawsuit was filed.

b. On or about January 11, 2008 at approximately 10:30 p.m. Ameenah Barry and Tanesha Bradbury was illegally arrested, battered and assaulted by police officers from the 47th precinct for which the "City" was sued.

c. On or about February 16, 2009 at approximately 7:00 p.m. Mr. Jones was illegally stopped, frisked, and arrested for which a lawsuit was commenced. This false arrest lawsuit involved police officers from the 47th precinct.

d. On or about November 6, 2009 Marcus Bonner was the subject of a false detention,

stop and frisk, and arrest which a law suit was commenced. Said lawsuit derived from the misconduct of Police officers from the 47th precinct.

e. On or about May 16, 2010, the false arrest of Steven Lloyd, a victim of the Defendants' stop and frisk policy, for which led to his false arrest and lawsuit thereafter.

94. The above lawsuits against the Defendants involving police misconduct, specifically the 47th precinct, reflects written and unwritten/defacto policy of racial profiling and the discriminatory implementation of the Defendants' stops and frisk policy which have violated McPherson's and others constitutional rights.

95. The Defendants have failed to address the illegal written and defacto policy for which the 47th precinct and named officers implement within the scope of their employment.

96. That by reason of the aforesaid, McPherson has been injured in mind and body and has been damaged.

97. That by reason of the aforesaid, McPherson has been damaged and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42. U.S.C. Sections 1983 and 1988 and such other relief as to the court may seem just and proper.

AS FOR A SIXTH CAUSE OF ACTION AGAINST ALL NAMED DEFENDANT
OFFICERS FOR 42 U.S.C. 1983 VIOLATIONS ON BEHALF OF MCPHERSON

98. McPherson repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "97" with the same force and effect as if more fully and at length set forth herein.

99. By the aforesaid acts, the Defendants "officers" individually and collectively have violated McPherson's right: to privacy under the First and Fourteenth Amendments, to have their homes and person be free of illegal searches and seizures under the 4th and 14th Amendments; to due process of law; to be free from discrimination based upon race; to be free from cruel and

unusual punishment; and to equal protection of the laws under the Fourteenth Amendment to the United States Constitution, thereby giving rise to a cause of action pursuant to 42 U.S.C. 1983.

100. The conduct and actions of the named Defendant police officer, acting under color of law, in seizing McPherson, in searching McPherson; in assaulting McPherson, in battering and assaulting McPherson; in threatening McPherson, searching McPherson, and in falsely arresting, imprisoning, and incarcerating McPherson as well as filing false reports, providing false evidence, maliciously prosecuting McPherson, and in conspiring against McPherson, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of each of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq..

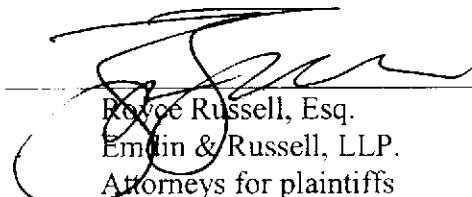
101. Each of the Defendant police officer's actions, individually and collectively deprived the plaintiff of his rights, including but not limited to the right to privacy in his person; under the First and Fourth Amendments guaranteeing protection against unlawful seizure of their person, the Fifth, Sixth and Fourteenth Amendments guaranteeing due process, right to a fair trial and equal protection under the law, and the Eighth Amendment guaranteeing protection from cruel and unusual punishment, and Title 42 U.S.C. 1983 et. seq.

102. That by reason of the aforesaid, McPherson has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, McPherson demand judgment against the Defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first

through the Sixth causes of action, plus attorneys fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
June 26, 2013



Royce Russell, Esq.
Emlin & Russell, LLP.
Attorneys for plaintiffs
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

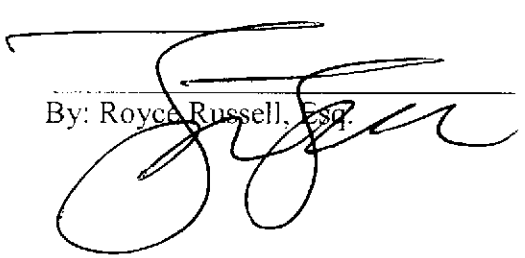
The undersigned further states that the reason this Summons and Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
June 26 2013

By: Royce Russell, Esq.



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JORDAN MCPHERSON

Plaintiff.

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, Lt. JAVIER VALENTINE OF THE 47TH PCT., TAX # 924576
INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICERS, KELVIN OZUNA,
SHIELD #023907, ABRAHAM VILLAVIZAR, SHIELD # 8178, INDIVIDUALLY AND AS A
POLICE OFFICER, AND JANE DOE, SUED HEREIN IN FICTICIOUS CAPACITY AS THE
IDENTITY IS PRESENTLY UNKNOWN, EACH INDIVIDUALLY AND AS POLICE
OFFICERS,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

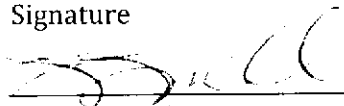
LAW OFFICES OF EMDIN & RUSSELL
Attorney for Claimant
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

TO: Attorney for Defendants
100 Church Street
New York, New York 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of
New York State, certifies that, upon information and belief and reasonable inquiry, the contentions
contained in the annexed document are not frivolous.

Dated: June 26, 2013

Signature


Royce Russell, Esq.

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PLEASE TAKE NOTICE

[] NOTICE OF ENTRY
that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

[] NOTICE OF SETTLEMENT that an order of which the within is a true copy will be
presented for settlement to the HON. one of the judges of the within named Court, at
on 20__